WHAT UCC MAY CHANGE

The uniform law may see these contentious provisions in personal laws getting abolished or extended to followers of all religions. This is not an exhaustive list

HINDUS

- A list of prohibited marriages may no longer remain valid. Marriage between lineal ascendants is one such example
- Full-blood relations currently get preference over half-blood relations for inheritance of property. A whole list of relations is also excluded from inheriting property on different grounds
- There is a distinction between ancestral property and self-acquired property. Any undivided property that passes to the descendants for up to four generations of male lineage is considered ancestral property. A grandchild has the birthright to inherit ancestral property but none over the grandparent's self-acquired property
- If a married woman dies, the husband's family is recognised as primary heirs and her parents and siblings secondary heirs
- A Hindu person who converts to another religion loses all right to claim maintenance from anybody
- The Hindu Undivided Family gets special tax exemption, a privilege that is denied to other religions

MUSLIMS

- Under Shariat, puberty or 15 is the minimum age of marriage
- Men can have up to four wives
- The marriage of a Muslim man and a non-Muslim woman can be validated if the woman converts to Islam. That won't be necessary under the UCC, like is the case under the Special Marriage Act
- Adultery by the husband is not recognised as a ground for divorce unless committed with 'women of evil repute'
- If divorce happens on account of the wife's adultery, one half of the property, to be given to the wife as alimony, can be reserved for the welfare of the children. The same does not apply to husbands
- A Muslim woman is entitled to a 1/8th share in her husband's property if the couple has children, else she gets a 1/4th share. A childless widow does not inherit her husband's immovable property
- A Muslim can't adopt a child, but can become a "Kafil" and provide for the maintenance and well-being of a child even though he is not its biological parent. But these children cannot become legal heirs

CHRISTIANS

- Only wife can claim maintenance and alimony

the emerging Opposition unity. Already, the issue has caused friction among the over two dozen political parties that came together recently to form INDIA, or the Indian National Developmental Inclusive Alliance, to take on the BJP-led NDA (National Democratic Alliance) in 2024.

The Congress, the largest party in the alliance, is in wait-and-watch mode, saying it will respond only once the government presents a draft on the subject. Party president Mallikarjun Kharge has formed an eight-member group to advise him on the matter. "The prime minister has framed the issue in a manner permitting only a binary response to the UCC—for or against," says former Union minister and Congress Rajya Sabha MP P. Chidambaram. "This approach treats the people of India as dumb, driven sheep. A nuanced approach will be to start a meaningful conversation on the reforms that need to be made in all personal laws, the Muslim law included. The key word is 'reform', not 'uniform'."

Other INDIA constituents such as the TMC (Trinamool Congress), DMK (Dravida Munnetra Kazhagam) and the JD-U (Janata Dal-United) have also called it a diversionary tactic on the BJP's part, deployed in utter disregard of the diversity and plurality of India's social fabric. Though not part of INDIA, Telangana chief minister and BRS (Bharat Rashtra Samithi) president K. Chandrashekar Rao has also announced opposition to the idea. As has SAD (Shiromani Akali Dal), BJP's former ally. BSP (Bahujan Samaj Party) chief Mayawati dilly-dallied, first supporting the idea and then slamming the BJP for "politicising" the issue.

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– P. CHIDAMBARAM
Congress Rajya Sabha MP